

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-21

PKDC, LLC
Complainant,

v.

CMA CGM S.A
Respondent

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), PKDC, LLC. (PKDC), and Respondent CMA CGM S.A. (“CMA”) (PKDC, collectively with CMA, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with Paragraph 20 of the Presiding Officer’s May 16, 2024 Initial Order in this case, the Parties have conferred

concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case and will be working together on a mutually acceptable stipulation for filing in this matter. Pursuant to 46 C.F.R. § 502.64(a), the Parties have reached out to schedule a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) which is scheduled to take place on Wednesday, January 22.

The Parties propose the below schedule, which provides for a discovery schedule in the 150-day¹ time period set by 46 C.F.R. § 502.141(g):

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 7, 2025
Parties to serve objections and responses to initial RFPs	March 14, 2025
Parties to serve objections and responses to initial interrogatories	March 14, 2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	March 31, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs	April 25, 2025
Disclosure of initial expert reports, if any	May 6, 2025

¹ While the parties will use best efforts to complete discovery within the 150-day period set forth herein, discovery in matters such as this can often require additional time to complete. Should additional time become necessary, the parties intend to file a timely request for more time pursuant to the Commission’s rules of practice.

Last day to serve interrogatories, requests for admission, and RFPs	May 6, 2025
Complete depositions of fact witnesses	May 20, 2025
Disclosure of rebuttal expert reports, if any	May 20, 2025
Complete expert depositions	June 6, 2025
Close of discovery	June 6, 2025
Complainant's initial brief, proposed findings of fact, and appendix	July 8, 2025
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 7, 2025
Complainant's reply and responses to proposed findings of fact	August 22, 2025

Dated January 16, 2025

Respectfully Submitted

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